

BUY - SELL AGREEMENT (Residential) (Including Earnest Money Receipt)



keThis Agreement stipulates the terms of sale of this property. Read carefully before signing. This is a legally binding contract. If not understood, seek competent advice.

1 Date: 03/03/2026
 2 Jennifer K Wells
 3 as ☐ joint tenants with rights of a survivorship, ☐ tenants in common, ☒ individually, ☐ other
 4 _____ (hereafter the "Buyer") agrees to purchase, and the Seller agrees to
 5 sell the following described real property (hereafter the "Property") commonly known as
 6 2760 Carla Jo Lane
 7 _____
 8 in the City of Missoula, County of Missoula, Montana,
 9 legally described as: Lot 105 of Invermere, Phase 2A, a platted subdivision in the CITY OF Missoula, Missoula County,
 10 Montana, according to the official recorded plat thereof.

11
 12 TOGETHER with all interest of Seller in vacated streets and alleys adjacent thereto, all easements and other
 13 appurtenances thereto, and all improvements thereon. All existing permanently installed fixtures and fittings that are
 14 attached to the Property are included in the purchase price and transfer to the Buyer, free of liens and without warranty
 15 of condition. Certain fixtures and fittings are included in the purchase price and transfer to the Buyer regardless of whether
 16 they are in fact permanently installed and attached to the Property. These fixtures and fittings are electrical, plumbing and
 17 heating fixtures, solar panels and related components, Seller owned water softeners/conditioners and propane tanks,
 18 wood, pellet, or gas stoves, built-in appliances, screens, storm doors, storm windows, curtain rods and hardware, window
 19 treatments, attached floor coverings, television wall mounts, satellite dish, hot tub, air cooler or conditioner, garage door
 20 openers and controls, fireplace inserts, mailbox, storage sheds, chicken coops, trees and shrubs and perennials attached
 21 to the Property, attached buildings or structures, unless otherwise excluded below:
 22 no exclusions

25 PURCHASE PRICE AND TERMS:

26 \$ 612,700.00 Purchase Price: six hundred twelve thousand seven hundred (U.S. Dollars)
 27 \$ 6,000.00 Earnest Money (credited to Buyer at closing)
 28 \$ 606,700.00 Balance Due (not including closing costs, prepaids and prorations) payable as follows
 29 (check one):
 30 ☐ All cash at closing (no financing contingency);
 31 Certification of cash funds provided ☐ with offer **OR** ☐ delivered by Buyer within
 32 _____ days of the date all parties have signed this Agreement. If Buyer fails to provide
 33 the certification of cash funds as required herein, Buyer will be in breach of this
 34 Agreement and Seller can exercise Seller's remedies under this Agreement.
 35 ☒ Additional cash down payment at closing in the minimum amount of:
 36 ☐ \$ _____ **OR** ☒ 5% of the Purchase Price
 37 Balance to be financed as indicated below:
 38 ☒ Conventional ☐ FHA ☐ VA ☐ MBOH ☐ USDA-RD ☐ Seller Financing ☐ Assumption
 39 ☐ Other: _____

41 A ☐ pre-qualification letter **OR** a ☒ pre-approval letter from financial institution provided
 42 ☒ with offer **OR** ☐ delivered by Buyer within _____ days of the date all parties have
 43 signed this Agreement. If Buyer fails to provide the pre-qualification or pre-approval letter
 44 (as applicable) as required herein, Buyer will be in breach of this Agreement and Seller can
 45 exercise Seller's remedies under this Agreement.

46 **CLOSING DATE:** The date of closing shall be (date) 04/10/2026 (the "Closing Date").
 47 The parties may, by mutual agreement, close the transaction anticipated by this Agreement at any time prior to the date
 48 specified. The Buyer and Seller will deposit with the closing agent all instruments and funds necessary to complete the
 49 purchase in accordance with this Agreement. If third party financing is required by the terms of this Agreement (including
 50 assumptions, contracts for deed, and lender financing), the Closing Date may be extended without amendment by not
 51 more than 5 bus days to accommodate delays attributable solely to such third party financing including, but not limited
 52 to, delays attributable to governmental regulations. If the Closing Date, or any extension of the Closing Date, falls on a
 53 Saturday, Sunday or Montana or federal holiday, it shall automatically be extended to the first day immediately following
 54 that is not a Saturday, Sunday or Montana or federal holiday.

55
 56 **POSSESSION:** Seller shall deliver to Buyer possession of the Property and allow occupancy:
 57 ☐ when the closing agent is in receipt of all required, signed documents and all funds necessary for the purchase: OR
 58 ☒ upon recording of the deed or notice of purchaser's interest, OR
 59 ☐

60
 61 Property shall be vacant unless otherwise agreed in writing. Seller shall provide keys and/or means to operate locks,
 62 mailboxes, security systems, alarms, garage door opener(s), and Property Owner's Association facilities, if applicable.

63
 64 **EARNEST MONEY:** (check one)

65 ☐ Broker/Salesperson acknowledges actual receipt of earnest money in the amount as set forth herein as evidenced by
 66 check, cash or wire transfer.

67
 68 Broker/Salesperson: _____
 69 (name printed) (signature acknowledging receipt of earnest money)

70 **OR**

71
 72 ☒ Buyer agrees to provide earnest money in the amount as set forth herein within 3 bus days, by 5:00 p.m. (Mountain
 73 Time), of the date all parties have signed this Agreement. If the date the earnest money is due falls on a Saturday,
 74 Sunday or Montana or federal holiday, it shall be paid on the first day immediately following the due date that is not a
 75 Saturday, Sunday or Montana or federal holiday.

76
 77 Earnest money may be made by check, cash or wire transfer and shall be held in trust by Insured Titles, LLC
 78 _____. If Buyer fails to provide earnest money as set forth herein,
 79 Buyer will be in default and Seller may declare this Agreement terminated and any earnest money already paid forfeited.
 80 The parties agree that accrued interest, if any, shall be payable to the holder of the funds and that sums so paid are
 81 consideration for services rendered.

82
 83 **PERSONAL PROPERTY:** The following items of personal property, free of liens and without warranty of condition, are
 84 included and shall transfer to the Buyer at Closing: Dishwasher, Disposal, Dryer, Microwave, Range, Refrigerator, Washer

85
 86
 87
 88 Buyer acknowledges that only the personal property set forth above is to transfer to the Buyer at Closing regardless of
 89 any other advertisements or information to the contrary.

90
 91 **LEASED/RENTED PERSONAL PROPERTY:** The following personal property is leased/rented: ☐ water softener
 92 ☐ water conditioner ☐ propane tank ☐ satellite dish, ☐ satellite control ☐ alarm system ☐ other none noted on MLS
 93 Listing agent to disclose prior to inspection notice date.

94 Buyer is responsible for making _____
 95 arrangements concerning Buyer's right to lease/rent said items and Seller makes no representations or warranties
 96 concerning the transferability of said items or the assignment of any agreements relating to the lease/rental of said items.

97
 98 **FINANCING CONDITIONS AND OBLIGATIONS:**

99
 100 **BUYER'S REPRESENTATION OF FUNDS:** Buyer represents that they have sufficient funds for the down payment
 101 and closing costs to close this sale in accordance with this Agreement and are not relying upon any contingent source
 102 of such funds unless otherwise expressly set forth herein.

103

LOAN APPLICATION: If Buyer fails to (i) make written application for financing with a lender which shall include providing a full executed copy of this Agreement to the lender, provide notice of their intent to a lender and pay to the lender any required fees, (ii) apply for assumption of an existing loan or contract, or (iii) initiate any action required for completion of seller financing by 5:00 P.M. (Mountain Time) (date) _____ completed _____ Buyer will be in breach of this Agreement and Seller can exercise Seller's remedies under this Agreement. This clause shall not be construed to restrict Buyer's right to review a loan estimate granted by governmental regulations.

V.A. BUYERS: It is expressly agreed that, notwithstanding any other provisions of this contract, the Buyer shall not incur any penalty by forfeiture of earnest money or otherwise be obligated to complete the purchase of the Property if the contract purchase price or cost exceeds the reasonable value of the Property established by the Veteran's Administration. The Buyer shall, however, have the privilege and option of proceeding with the consummation of this Agreement without regard to the amount of the reasonable value established by the Veteran's Administration.

F.H.A. BUYERS: In the event funds for the transaction anticipated by this Agreement are to be derived from an F.H.A. insured loan, it is expressly agreed that, notwithstanding any other provisions of this Agreement, the Buyer shall not be obligated to complete the purchase of the Property described herein or to incur any penalty by forfeiture of earnest money deposits or otherwise, unless the Buyer has received a written statement issued by the Federal Housing Commissioner, Veteran's Administration, or a Direct Endorsement lender setting forth the appraised value of the Property for mortgage insurance purposes of not less than the amount set forth in the APPRAISAL PROVISION section, which amount is incorporated herein by reference. The Buyer shall have the privilege and option of proceeding with the consummation of this Agreement without regard to the amount of the appraised valuation made by the Federal Housing Commissioner. The appraised valuation is arrived at to determine the maximum mortgage the Department of Housing and Urban Development (HUD) will insure. HUD does not warrant the value nor the condition of the Property. The Buyer should satisfy himself/herself that the price and condition of the Property are acceptable.

DETECTION DEVICES: The Property is equipped with the following detection devices:

- ☒ Smoke detector(s)
- ☒ Carbon monoxide detector(s)
- ☐ Other fire detection device(s): _____

PROPERTY INSPECTIONS: The Buyer is aware that any Brokerage Firm(s) and Brokers/Salespersons involved in the transaction anticipated by this Agreement have not conducted an expert inspection or analysis of the Property or its condition and make no representations to the Buyer as to its condition, do not assure that the house and/or buildings will be satisfactory to the Buyer in all respects, that all equipment will operate properly or that the Property and/or improvements comply with current building and zoning codes and ARE NOT building inspectors, building contractors, structural engineers, electricians, plumbers, sanitarians, septic or cesspool experts, well drillers or well experts, land surveyors, civil engineers, flood plain or water drainage experts, roofing contractors or roofing experts, accountants, attorneys, or title examiners, or experts in identifying hazardous waste and/or toxic materials.

CONTINGENCIES: The contingencies set forth in this Agreement or on attached addenda shall be deemed to have been released, waived, or satisfied, and the Agreement shall continue to closing, unless, by 5:00 p.m. (Mountain Time) on the date specified for each contingency, the party requesting that contingency has notified the other party or the other party's Broker/Salesperson in writing that the contingency is not released, waived, or satisfied. If a party has notified the other party on or before the release date that a contingency is not released, waived, or satisfied, this Agreement is terminated, and the earnest money will be returned to the Buyer, unless the parties negotiate other terms or provisions.

INSPECTION CONTINGENCY:

☒ This Agreement is contingent upon Buyer's acceptance of any Property conditions that Buyer deems appropriate, including but not limited to any inspections or advice listed below. Buyer agrees to acquire, at Buyer's own expense, independent inspections or advice from qualified inspectors and advisors of the Buyer's choice. Buyer agrees that any investigations or inspections undertaken by Buyer or on his/her behalf shall not damage or destroy the Property, without the prior written consent of Seller. Seller agrees to provide Buyer and Buyer's agents, inspectors and advisors reasonable access to the Property to conduct any inspections desired by Buyer. Buyer agrees to indemnify, defend and hold harmless Seller from any and all claims or damage, including attorney's fees, caused by or incurred during any inspections of the Property by or on behalf of the Buyer and that arise out of or are related to (i) any loss or damage to the Property or the contents of the Property caused by any inspection or (ii) any injury to Buyer or Buyer's inspectors or advisors.

Home/Property Inspection	Review and Approval of Protective Covenants
Owner's Property Disclosure Statement	Easements
Roof Inspection	Flood Plain Determination
Structural/Foundation Inspection	Water Sample Test
Electrical Inspection	Septic or Cesspool Inspection
Plumbing Inspection	Mineral Rights Search
Heating, ventilation, cooling system – Inspection	Radon
Stove/Fireplace Inspection	Asbestos
Pest/Rodent Inspection	Wildfire Risk
Well Inspection for Condition of Well and Quantity of Water	Legal Advice
Accounting Advice	Toxic Waste/Hazardous Material
Survey or Corner Pins located	Underground Storage Tanks
Access to Property	Sanitary Approval/Septic permit
Verification of # of code compliant bedrooms	Mold
Verification of square footage of improvements	Verification of lot size
Water Rights	Airport Affected Area
Zoning Determination	Road Maintenance
Post-Closing Rental Obligations	Internet Availability/Speed
Inspection/Testing for Methamphetamine	

Unless Buyer delivers written notice(s) of Buyer's disapproval of the Property conditions on or before (Notice Date) 03/13/2026 at 5:00 p.m. (Mountain Time), this inspection contingency shall be of no further force or effect. **If Buyer disapproves** of the Property condition, Buyer shall deliver written notice to the Seller or the Seller's Broker/Salesperson on or before the date specified above, together with a copy of ONLY that portion of the inspection or report upon which the disapproval is based. Buyer shall also state whether Buyer elects to immediately terminate the Agreement or negotiate a resolution of the conditions noted. **If Buyer elects to negotiate** a resolution of the conditions noted, the notice must contain all of Buyer's objections and requested remedies.

On or before the Notice Date set forth above, Buyer may deliver a written notice to the Seller or the Seller's Broker/Salesperson electing to terminate the Agreement and withdrawing any prior notice or notices requesting a resolution of the condition(s) noted, unless said prior notice(s) have been approved and agreed to in writing by the Seller.

If Buyer has provided a notice electing to negotiate and the parties enter into a written agreement in satisfaction of the condition(s) noted, this contingency shall be of no further force or effect. If the parties cannot come to written agreement in satisfaction of the condition(s) noted or if the Buyer does not withdraw, in writing, his/her disapproval of the condition(s) noted and elect to continue to closing without regard to any and all previously provided inspection notices, on or before (Resolution Date) 03/18/2026 at 5:00 p.m. (Mountain Time), the earnest money shall be returned to the Buyer, and the Agreement then terminated.

FINANCING CONTINGENCY:

☒ This Agreement is contingent upon Buyer obtaining the financing specified in the section of this Agreement entitled "PURCHASE PRICE AND TERMS." If financing cannot be obtained by the Closing Date this Agreement is terminated and the earnest money will be refunded to the Buyer.

APPRAISAL CONTINGENCY:

☒ Property must appraise for at least ☒ the Purchase Price **OR** at least ☐\$ _____. If the Property does not appraise for at least the specified amount, this Agreement is terminated and earnest money refunded to the Buyer unless the Buyer elects to proceed with closing this Agreement without regard to appraised value. Written notice of Buyer's election to proceed shall be given to Seller or Seller's Broker/Salesperson within 3 bus days of Buyer or Buyer's Broker/Salesperson receiving notice of appraised value; **OR** ☐ This Agreement is contingent upon the Property appraising for at least ☐ the Purchase Price **OR** at least ☐\$ _____. Release Date: _____ at 5:00 p.m. (Mountain Time).

TITLE CONTINGENCY: This Agreement is contingent upon Buyer's receipt and approval (to Buyer's satisfaction) of the preliminary title commitment (the "Commitment") issued for the Property. However, Buyer may not object to the standard pre-printed exceptions (general exceptions not unique to the Property). Release Date: _____ 7 bus days from the earlier of Buyer's or Buyer Broker's/Salesperson's receipt of the Commitment.

Buyer may approve the Commitment subject to the removal of specified exceptions. However, Buyer may not object to the standard pre-printed exceptions (general exceptions not unique to the Property). If Buyer provides Seller written objections to the Commitment prior to the release date above, Seller shall have ten (10) days from receipt of those objections to satisfy said objections or propose to Buyer a plan by which the objections would be satisfied within a time frame satisfactory to Buyer. If within said ten (10) day period Seller has not either satisfied Buyer's objection to the Commitment or proposed to Buyer a plan by which the objections would be satisfied, Buyer shall have three (3) days after expiration of said ten (10) day period to notify Seller whether Buyer desires to (i) terminate this Agreement in which case the earnest money shall be returned to the Buyer or (ii) waive said objections in which case this Agreement shall remain in full force and effect. The two remedies stated above shall be Buyer's sole remedies if Seller and Buyer are unable to resolve Buyer's objections to the Commitment.

Buyer shall have the right to examine any updated or revised Commitment at any time after the expiration of the Release Date set forth above and to object to any new title exceptions created or suffered since the effective date of the original Commitment. If Buyer notifies Seller of any such additional objections prior to the Closing Date, the parties shall have the same rights set forth above and the Closing Date shall be extended by the number of days equal to the number of days set forth after the Release Date, above, plus thirteen (13).

INSURANCE CONTINGENCY: This Agreement is contingent upon Buyer's ability to acquire, at a rate acceptable to the Buyer, hazard insurance on the Property. Release Date: _____ 03/13/2026 _____ at 5:00 p.m. (Mountain Time).

LEAD BASED PAINT CONTINGENCY: For housing built prior to 1978, if Seller is required by applicable law to provide a Lead Based Paint Disclosure and pamphlet entitled "Protect Your Family from Lead in Your Home" (the LBP Documents), and if said LBP Documents have been provided to Buyer **after** the full execution of this Agreement by all parties, Buyer shall have the unconditional right to cancel this Agreement (without risk of loss or other adverse effects) within three (3) days after electronic or hand delivery of the LBP Documents, or five (5) days after deposit of the LBP Documents in the mail, by giving written notice of cancellation to Seller or Seller's Broker/Salesperson.

OWNER'S PROPERTY DISCLOSURE CONTINGENCY: Pursuant to Montana law, in the transfer of residential real estate in Montana a seller is required to provide to a buyer a written disclosure statement disclosing any adverse material facts that concern the residential real property and of which the seller has actual knowledge (the "Disclosure Statement"). If said Disclosure Statement is not delivered by Seller to Buyer prior to or contemporaneously with the execution of this Agreement Buyer shall have the right to rescind this Agreement within three (3) days after delivery of the Disclosure Statement by Seller to Buyer by Buyer giving written notice of rescission to Seller or Seller's Broker/Salesperson. Buyer may waive this right to rescind as set forth in this Agreement.

This Agreement is contingent upon _____

_____. Release Date: _____ at 5:00 p.m. (Mountain Time).

ADDITIONAL PROVISIONS: Inspection will be primarily for the buyers due diligence. Only matters relating to the roof, safety, or structural issues would be further negotiated (if any) in an inspection notice.

EXEMPT WELL PERMITTING DISCLAIMER AND BUYER ACKNOWLEDGMENT: Buyer acknowledges that groundwater use in Montana, including wells claimed to be exempt from permitting, is subject to changing laws, regulations, and agency and court decisions. An exempt well filing does not guarantee the legality, priority, or continued availability of groundwater, and groundwater use may be limited or prohibited due to basin closures, regulatory action, mitigation requirements, or other governmental determinations by the Montana Department of Natural Resources and Conservation (“DNRC”) or a Montana court or other authorities.

318 If the Property is served by a well, neither Seller nor any Brokerage Firm(s) or Brokers/Salespersons involved in the
 319 transaction anticipated by this Agreement make any representation or warranty regarding the existence, validity, priority,
 320 exempt status, or adequacy of any well or groundwater use serving the Property. Buyer acknowledges that water
 321 availability is a material consideration in Buyer's decision to purchase the Property, that Buyer is not relying on any
 322 statement by Seller or said Brokerage Firms or Brokers/Salesperson regarding groundwater or exempt well eligibility, and
 323 that Buyer has had the opportunity to conduct Buyer's own independent investigation regarding water rights and
 324 groundwater use.

325
 326 If the Property is served by a well, Buyer assumes all risk related to groundwater development and use for the Property,
 327 and neither Seller nor any Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this
 328 Agreement shall have any liability for any loss, cost, or inability to use groundwater resulting from exempt well permitting
 329 or related regulatory requirements.

330
 331 **WATER RIGHT OWNERSHIP UPDATE DISCLOSURE:** By Montana law, failure of the parties at closing or transfer of
 332 real property to pay the required fee to the Montana Department of Natural Resources and Conservation for updating
 333 water right ownership may result in the transferee of the property being subject to a penalty. Additionally, in the case of
 334 water rights being exempted, severed, or divided, the failure of the parties to comply with section 85-2-424, MCA, could
 335 result in a penalty against the transferee and rejection of the deed for recording.

336
 337 **NATURAL WATER BODIES AND LAND PRESERVATION DISCLOSURE:** Buyers of property in the State of Montana
 338 should be aware that some properties contain or are adjacent to streams, rivers, wetlands, floodplains and other water
 339 bodies. It is the general policy of the State of Montana, under the Montana Natural Streambed and Land Preservation
 340 Act of 1975, that natural water bodies and the lands immediately adjacent to them are to be protected and preserved to
 341 be available in their natural or existing state, and to prohibit unauthorized projects related thereto. Property owners should
 342 consult their local conservation district, a land use professional, or other qualified advisor, regarding any applicable local,
 343 state or federal regulations, including permitting or other approvals, before working in or around any streams, rivers,
 344 wetlands, floodplains or other water bodies, including vegetation removal.

345
 346 **FLUCTUATING WATER LEVELS:** Buyers of waterfront property or property which has waterfront access should be
 347 aware that fluctuating water levels may occasionally or permanently affect the ability to recreate, irrigate, or engage in
 348 other uses of said water. Water provided to the Property by a well, spring, or other surface or subsurface water source,
 349 may also fluctuate as to the quantity or quality of the water which may occasionally or permanently affect the ability to
 350 irrigate or engage in other uses of said water.

351
 352 **FLOOD PLAIN DISCLOSURE:** Property flooding can occur any time of year from both surface water as well as
 353 groundwater (water rising up through the ground). Buyer's hazard insurance policy usually will NOT cover property
 354 damage due to this type of flooding. If Property is determined to lie within a FEMA-designated 1% Flood Hazard Area
 355 and the Buyer is obtaining a loan, Buyer's lender will likely require the purchase of flood insurance in connection with
 356 Buyer's purchase of the Property. The Property could be impacted, learn more at FEMA.gov.

357
 358 **MINERAL RIGHTS:** "Mineral rights" as defined in this Agreement (which may be different than the definition under
 359 Montana law) is a term used to describe the rights the owner of those rights has to use, mine, and/or produce any or all
 360 of the minerals and hydrocarbons including oil, gas, coal, sand, gravel, etc., lying below the surface of property. These
 361 mineral rights may be separate from the rights a property owner has for the surface of a property. In some cases, these
 362 mineral rights have been transferred to a party other than the property owner and as a result the subsurface mineral rights
 363 have been severed from the property owner's surface rights. If the mineral rights have been severed from the surface
 364 rights, the owner of the mineral rights has the right to enter the land and occupy it in order to mine the minerals even
 365 though they don't own the property. The undersigned Buyer acknowledges and agrees that neither the Seller nor the
 366 brokerage firms, brokers and salespersons involved in the transaction anticipated by this Agreement warrant or make any
 367 representations concerning the mineral rights, if any, for this Property and that neither the Seller nor the brokerage firms,
 368 brokers and salespersons involved in the Buyer's purchase of the Property have conducted an inspection or analysis of
 369 the mineral rights to and for the Property.

370
 371 **CLOSING FEE:** The fee charged by the individual or company closing the transaction will be paid by ☐ Seller ☐ Buyer
 372 ☒ Equally Shared.

373

374 **TITLE INSURANCE:** Seller, at Seller's expense and from a title insurance company chosen by Seller, shall furnish Buyer
 375 with an ALTA Standard Coverage Owner's Title Insurance Policy (as evidenced by a standard form American Land Title
 376 Association title insurance commitment) in an amount equal to the purchase price. Buyer may purchase additional owner's
 377 title insurance coverage in the form of "Extended Coverage," "Enhanced Coverage" for an additional cost to the Buyer. It
 378 is recommended that Buyer obtain details from a title company.

379
 380 **CONDITION OF TITLE:** All mortgages, judgments and liens shall be paid or satisfied by the Seller at or prior to closing
 381 unless otherwise provided herein. Seller agrees that no additional encumbrances, restrictions, easements or other
 382 adverse title conditions will be placed against the title to the Property subsequent to the effective date of the preliminary
 383 title commitment approved by the Buyer.

384
 385 **SECTION 1031 LIKE-KIND EXCHANGE:** If either Buyer or Seller intends for this transaction to be part of a Section 1031
 386 like-kind exchange, then the other party shall cooperate in the completion of the like-kind exchange provided the
 387 cooperating party does not incur any additional liability or cost in doing so. Any party who intends for this transaction to
 388 be part of a Section 1031 like-kind exchange may assign their rights under this Agreement to a qualified intermediary or
 389 any entity expressly created for the purposes of completing a Section 1031 like-kind exchange, notwithstanding the
 390 prohibition against the Buyer's assignment of this Agreement set forth in the "Binding Effect and Non-Assignability" section
 391 below.

392
 393 **SPECIAL IMPROVEMENT DISTRICTS AND ASSOCIATION SPECIAL ASSESSMENTS:** All Special Improvement
 394 Districts (including rural SIDs), and all special or non-recurring assessments of any non-governmental association,
 395 including those that have been noticed to Seller by City/County but not yet spread or currently assessed or that have been
 396 approved but not yet billed or assessed, will be assumed by Buyer at closing unless otherwise agreed.

397
 398 **MONTANA RESIDENTIAL PROPERTY TAX CHANGES ACKNOWLEDGMENT AND DISCLAIMER:** Buyer
 399 acknowledges and understands that the State of Montana has enacted changes to the rules and calculation of residential
 400 property taxes that went into effect in 2026, including a new reduced tax rate structure for qualifying principal residences
 401 and long-term rentals and higher tax rates for residential properties that do not qualify for reduced classification (such as
 402 second homes or short-term rentals). Buyer further acknowledges that (i) the amount of property tax that Buyer will
 403 ultimately pay for the Property in 2026 and beyond may differ materially from prior tax years; (ii) whether the Property
 404 qualifies for any reduced tax classification depends on Buyer's use, occupancy, enrollment, and compliance with
 405 applicable Montana statutes, Montana Department of Revenue rules, and administrative processes; and (iii) neither Seller
 406 nor any Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this Agreement have made
 407 any representations, warranties, or guarantees regarding the Property's current or future property tax classification, tax
 408 rates, eligibility for reduced tax rates, property tax bills, or tax liability. Buyer agrees that Buyer has had the opportunity to
 409 seek independent advice from tax professionals or legal counsel regarding potential impacts of Montana property tax
 410 changes on Buyer's ownership and future tax obligations relating to the Property.

411
 412 **PRORATION OF TAXES AND ASSESSMENTS:** Seller and Buyer agree to prorate taxes, Special Improvement District
 413 and association special assessments for the current tax year, as well as prepaid rents, water and sewer system charges,
 414 heating fuel and tank rental, irrigation assessments, Homeowner's Association dues and/or common maintenance fees,
 415 as of the date of closing unless otherwise agreed.

416
 417 **HEATING FUEL/PROPANE PRORATION:** Seller and Buyer agree to prorate the heating fuel/propane at the current
 418 market price as provided by a heating fuel/propane company no more than 7 days prior to closing, OR at the price charged
 419 for the last refill per a receipt to be provided by the Seller prior to closing, whichever is LESS. If the heating fuel/propane
 420 tank is rented, proration will be based on the most current rental fee charged or owing at the time of closing.

421
 422 **CONDITION OF PROPERTY:** Seller agrees that the Property shall be in the same condition, normal wear and tear
 423 excepted, from the date of the execution of this Agreement up to the time Buyer takes possession of the Property. Seller
 424 agrees to leave the Property free and clear of Seller's personal property and possessions, tenants, and occupants, except
 425 as otherwise agreed to in the Agreement. Seller also agrees to leave the Property in broom clean or better condition, free
 426 of trash and debris, with floors swept or vacuumed and surfaces generally wiped clean. Seller also agrees to allow Buyer
 427 a walk-through inspection of said Property prior to closing to confirm that all appurtenances and appliances included in
 428 the sale remain on the Property and that there has been no significant change in the condition of the Property, except for
 429 normal wear and tear and changes agreed upon by the parties.

430

431 **NOXIOUS WEEDS DISCLOSURE:** Buyers of property in the State of Montana should be aware that some properties
 432 contain noxious weeds. The laws of the State of Montana require owners of property within this state to control, and to
 433 the extent possible, eradicate noxious weeds. For information concerning noxious weeds and your obligations as an
 434 owner of property, contact either your local county extension agent or Weed Control Board.

435
 436 **MEGAN'S LAW DISCLOSURE:** Pursuant to the provisions of Title 46, Chapter 23, Part 5 of the Montana Code Annotated,
 437 certain individuals are required to register their address with the local law enforcement agencies as part of Montana's
 438 Sexual and Violent Offender Registration Act. In some communities, law enforcement offices will make the information
 439 concerning registered offenders available to the public. If you desire further information please contact the local County
 440 Sheriff's office, the Montana Department of Justice, in Helena, Montana, and/or the probation officers assigned to the
 441 area.

442
 443 **RADON DISCLOSURE STATEMENT:** The following disclosure is given pursuant to the Montana Radon Control Act,
 444 Montana Code Annotated Section 75-3-606. RADON GAS: RADON IS A NATURALLY OCCURRING RADIOACTIVE
 445 GAS THAT, WHEN IT HAS ACCUMULATED IN A BUILDING IN SUFFICIENT QUANTITIES, MAY PRESENT HEALTH
 446 RISKS TO PERSONS WHO ARE EXPOSED TO IT OVER TIME. LEVELS OF RADON THAT EXCEED FEDERAL
 447 GUIDELINES HAVE BEEN FOUND IN BUILDINGS IN MONTANA. ADDITIONAL INFORMATION REGARDING RADON
 448 AND RADON TESTING MAY BE OBTAINED FROM YOUR COUNTY OR STATE PUBLIC HEALTH UNIT. If the Property
 449 has been tested for radon, the Seller will provide a copy of the test results concurrent with an executed copy of this
 450 Agreement. If the Property has received radon mitigation treatment, the Seller will provide the evidence of the mitigation
 451 treatment concurrent with an executed copy of this Agreement.

452
 453 **NEWLY CONSTRUCTED RESIDENCE:** See "Newly Constructed Residence Addendum and Disclosure."
 454

455 **BUYER'S REMEDIES:**

456 (A) If the Seller fails to accept the offer contained in this Agreement within the time period provided in the
 457 BUYER'S COMMITMENT section, all earnest money shall be returned to the Buyer.
 458 (B) If the Seller accepts the offer contained in this Agreement, but refuses or neglects to consummate the transaction
 459 anticipated by this Agreement within the time period provided in this Agreement, the Buyer may:
 460 (1) Demand immediate repayment of any earnest money paid by the Buyer, and upon the return of such
 461 money, the rights and duties of Buyer and Seller under this Agreement shall be terminated;
 462 **OR** (2) Demand that Seller specifically perform Seller's obligation under this Agreement;
 463 **OR** (3) Demand monetary damages from Seller for Seller's failure to perform the terms of this Agreement.

464
 465 **SELLER'S REMEDIES:**

466 If the Seller accepts the offer contained in this Agreement and Buyer refuses or neglects to consummate the transaction
 467 anticipated by this Agreement within the time period provided in this Agreement, the Seller may:
 468 (1) Declare the earnest money paid by Buyer be forfeited whereupon the rights and duties of the Buyer and Seller
 469 under this Agreement shall be terminated;
 470 **OR** (2) Demand that Buyer specifically perform Buyer's duties and obligations under this Agreement;
 471 **OR** (3) Demand that Buyer pay monetary damages for Buyer's failure to perform the terms of this Agreement.

472
 473 **BUYER'S AND SELLER'S CERTIFICATION:** By entering into this Agreement, each person or persons executing this
 474 Agreement, as Buyer or Seller, represents that he/she is eighteen (18) years of age or older, of sound mind, and legally
 475 competent to own or transfer real property in the State of Montana; and, if acting on behalf of a corporation, partnership,
 476 or other non-human entity, that he/she is duly authorized to enter into this Agreement on behalf of such entity.

477
 478 **FOREIGN PERSON OR ENTITY:** The Foreign Investor Real Property Tax Act of 1980 ("FIRPTA") provides for the
 479 withholding of tax upon the sale of U.S. real property owned by a foreign entity or foreign person unless the amount
 480 realized (usually the sales price) does not exceed \$300,000 and the Buyer intends to use the Property as a residence. If
 481 the Seller is a foreign entity or foreign person, Seller acknowledges and agrees that the Buyer or closing agent is required
 482 to deduct and withhold the applicable tax from the proceeds of sale at closing and submit the tax to the Internal Revenue
 483 Service unless the transfer of the Property satisfies an exception provided for in FIRPTA. At or prior to Closing, Seller
 484 agrees to perform any act and sign any document that is reasonably necessary to comply with FIRPTA including a
 485 Statement of Non-Foreign Status. Seller acknowledges and agrees that in the event Seller does not do so, Buyer or the
 486 closing agent may be required to withhold the applicable tax from the proceeds of sale at Closing and submit this amount
 487 to the Internal Revenue Service, pursuant to FIRPTA.

488

489 **FINCEN RESIDENTIAL REAL ESTATE REPORTING RULE – NOTICE AND ACKNOWLEDGMENT:** Buyer and Seller
 490 acknowledge that certain residential real estate transactions may be subject to federal reporting requirements
 491 administered by the Financial Crimes Enforcement Network (“FinCEN”). If the transaction involving the Property is
 492 determined to be a reportable transaction, either or both Buyer and Seller may be required to provide personal, ownership,
 493 and transactional information to the closing agent or other reporting person for purposes of complying with applicable law.
 494 Buyer and Seller acknowledge and agree that the failure or refusal of either party to timely provide required information
 495 may result in delays to closing or the closing agent’s refusal to complete, close, or record the transaction. Buyer and Seller
 496 further acknowledge that no Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this
 497 Agreement Broker is responsible for determining whether the transaction is reportable or for preparing or submitting any
 498 FinCEN reports. Buyer and Seller each agree to cooperate in good faith with any lawful information requests related to
 499 FinCEN reporting requirements including, without limitation, providing all information required and acknowledge the failure
 500 to do so may constitute a breach of this Agreement entitling the other party to exercise all remedies under this Agreement.
 501

502 Any fee charged by the individual or company closing the transaction for preparing and/or submitting any FinCEN reports
 503 will be paid by ☒ Seller ☐ Buyer ☐ Equally Shared.
 504

505 **CONSENT TO DISCLOSE INFORMATION:** Buyer and Seller hereby consent to the procurement and disclosure by
 506 Buyer, Seller, and Brokers/Salespersons and their attorneys, agent, and other parties having interests essential to this
 507 Agreement, of any and all information reasonably necessary to consummate the transaction anticipated by this
 508 Agreement, specifically including access to escrows for review of contracts, deeds, trust indentures, or similar documents
 509 concerning this Property or underlying obligations pertaining thereto.
 510

511 **WIRE FRAUD ALERT:** Criminals are hacking email accounts of title companies, real estate agents, settlement attorneys
 512 and others, resulting in fraudulent wire instructions being used to divert funds to the account of the criminal. The emails
 513 may look legitimate, but they are not. Buyer and Seller are advised NOT to wire any funds without personally speaking
 514 with the intended recipient of the wire to confirm the routing number and the account number. Buyer and Seller should
 515 NOT send personal information such as social security numbers, bank account numbers and credit card numbers through
 516 email.
 517

518 **ACCURACY OF THIRD-PARTY INFORMATION:** Buyer is encouraged to do Buyer’s own research and due diligence
 519 concerning the Property and to not rely solely on information contained in any advertisements, descriptions, photos, or
 520 information provided by a Multiple Listing Service. Buyer acknowledges and agrees that any information prepared by
 521 third parties with respect to the Property and provided to the Buyers was obtained from a variety of sources and that
 522 neither Seller nor any Brokers/Salesperson representing Seller or Buyer have made any independent investigation or
 523 verification of such information. Buyer further acknowledges that while such information provided to Buyer is believed to
 524 be from sources deemed reliable, some sources may have conflicting or incorrect information.
 525

526 **RISK OF LOSS:** All loss or damage to any of the above-described Property or personal property from any cause is
 527 assumed by Seller through the time of closing unless otherwise specified.
 528

529 **TIME IS OF THE ESSENCE:** Time is of the essence as to the terms and provisions of this Agreement.
 530

531 **BINDING EFFECT AND NON-ASSIGNABILITY:** The Agreement is binding upon the heirs, successors and assigns of
 532 each of the parties hereto; however, Buyer’s rights under this Agreement are not assignable without the Seller’s express
 533 written consent.
 534

535 **ATTORNEY FEE:** In any action brought by the Buyer or the Seller to enforce any of the terms of this Agreement, the
 536 prevailing party in such action shall be entitled to such reasonable attorney fees as the court or arbitrator shall determine
 537 just.

538 COMPENSATION: The Seller's and/or Buyer's commitment to pay compensation in connection with the transaction
 539 anticipated by this Agreement is an integral part of this Agreement. Seller and Buyer acknowledge that the agent(s)
 540 representing the Seller and/or Buyer are entitled to the compensation as previously agreed to in any written agreement(s)
 541 with the Seller and/or Buyer, and any addendums or amendments to this Agreement, and that the agent(s) representing
 542 the Seller and/or Buyer shall be entitled to deliver a copy of said agreement(s) to the individual or company closing the
 543 transaction for payment at closing. If Seller is obligated to pay the agent(s) representing the Seller and/or Buyer, this
 544 Agreement shall constitute an irrevocable assignment of the proceeds payable to Seller at closing. If Buyer is obligated
 545 to pay the agent(s) representing the Seller and/or Buyer, payment of said compensation shall be collected from Buyer as
 546 a condition of closing. Buyer and Seller acknowledge and agree that any compensation payable is fully negotiable and
 547 not set by Montana law, any board or association of REALTORS®, or any multiple listing service.

548 FAX/COUNTERPARTS/ELECTRONIC SIGNATURES: This Agreement may be executed in counterparts and, when all
 549 counterpart documents are executed, the counterparts shall constitute a single binding instrument. Moreover, a signature
 550 transmitted by fax or other electronic means will be enforceable against any party, who executes the Agreement and
 551 transmits the signature by fax or other electronic means. The parties hereto, all agree that the transaction contemplated
 552 by this document may be conducted by electronic means in accordance with the Montana Uniform Electronic Transaction
 553 Act.
 554

555 ENTIRE AGREEMENT: This Agreement, together with any attached exhibits and any addenda or amendments signed
 556 by the parties, shall constitute the entire agreement between Seller and Buyer, and supersedes any other written or oral
 557 agreements between Seller and Buyer. This Agreement can be modified only in writing, signed by the Seller and Buyer.
 558

559 EARNEST MONEY DISPUTES: Buyer and Seller agree that, in the event of any controversy regarding the earnest money
 560 and things of value held by the Broker, closing agent, or any person or entity holding such money or property, unless
 561 mutual written instructions are received by the holder of the earnest money and things of value, Broker or closing agent
 562 shall not be required to take any action, but may await any proceedings, or, at Broker's or closing agent's option and sole
 563 discretion, may interplead all parties and deposit any monies or things of value in a Court of competent jurisdiction and
 564 may utilize as much of the earnest money deposit as may be necessary to advance the cost and fees required for filing
 565 such action.
 566

567 ADDENDA AND/OR DISCLOSURES ATTACHED: (check all that apply):
 568 ☐ Lead Based Paint Disclosure ☐ Contingency for Sale of Buyer's Property
 569 ☐ Addendum for Additional Provisions ☐ Back-up Offer
 570 ☐ Multi-Family Disclosure ☐ Water Rights Acknowledgement
 571 ☐ Mold Disclosure ☐ Montana Unit Ownership Act
 572 ☐ Newly Constructed Residence Addendum and Disclosure ☐ Seller to Broker/Salesperson Compensation
 573 ☐ Rent-Back Agreement (Post-Closing Seller Occupancy) ☐ Addendum
 574 ☐ Septic System Disclosure and Acknowledgment ☐ Solar Panel Addendum
 575 ☒ Escalation Addendum

576 RELATIONSHIP CONFIRMATION: The parties to this Agreement confirm that the real estate licensees identified
 577 hereafter have been involved in the capacities indicated below and the parties have previously received the required
 578 statutory disclosures setting forth the licensees' duties and the limits of their obligations to each party:
 579

581	582 Julie Gardner	582 of ERA Lambros Real Estate
583	583 (name of licensee)	583 (name of brokerage company)
584		584 3011 American Way
585	585 15881	585 of Missoula, MT 59808
586	586 (licensee's Montana license number)	586 (brokerage company address)
587		
588	588 406-532-9233	588 406-532-9200
589	589 (licensee phone number)	589 (brokerage company phone number)
590		
591	591 jgardner@eralambros.com	
592	592 (licensee email address)	
593	593 is acting as ☒ Seller's Agent	☐ Dual Agent ☐ Statutory Broke
594		

595 MerriLee Valentine and Kaileigh Ressel of ERA Lambros Missoula
 596 (name of licensee) (name of brokerage company)
 597 3011 American Way
 598 17623 of Missoula, MT 59808
 599 (licensee's Montana license number) (brokerage company address)
 600
 601 4063704984 406-532-9200
 602 (licensee phone number) (brokerage company phone number)
 603

604 merrileevalentine@ERAlambros.com
 605 (licensee email address)
 606 is acting as ☒ Buyer's Agent ☐ Dual Agent ☐ Statutory Broker
 607 ☐ Seller's Agent (includes Seller's Sub-Agent).
 608

609 ☐ Buyer is not represented by a real estate agent and acknowledges and agrees that Buyer is NOT represented by the
 610 licensee(s) identified above.
 611

612 ☐ Seller is not represented by a real estate agent and acknowledges and agrees that Seller is NOT represented by the
 613 licensee(s) identified above.
 614

615 **BUYER'S REPRESENTATIONS AND ACKNOWLEDGMENTS:** By signing this Agreement Buyer represents and
 616 acknowledges the following:
 617

618 Buyer has examined the subject real and personal property and represents that Buyer:
 619 ☒ has physically visited the Property in person prior to the execution of this Agreement; **OR**
 620 ☐ has not physically visited the Property in person prior to the execution of this Agreement;
 621

622 That prior verbal representations by the Seller or Seller's representatives do not modify or affect this Agreement; and
 623

624 That Buyer has entered into this Agreement in full reliance upon Buyer's her independent investigation and judgments
 625 and has read and understand this entire Agreement.
 626

627 **BUYER'S COMMITMENT:** I/We agree to purchase the above-described Property on the terms and conditions set forth
 628 in the above offer and grant to said Broker/Salesperson until (date) 03/04/2026, at 5 ☐ am
 629 ☒ pm (Mountain Time) to secure Seller's written acceptance, whether or not that deadline falls on a Saturday, Sunday
 630 or holiday. Buyer may withdraw this offer at any time prior to Buyer being notified of Seller's written acceptance. If Seller
 631 has not accepted by the time specified, this offer is automatically withdrawn. I/we hereby acknowledge receipt of a copy
 632 of this Agreement bearing my/our signature(s).
 633

634  dotloop verified
03/03/26 11:57 AM MST
WKFK-SGSA-1UZR-2DJN Date: _____, at _____ ☐ am ☐ pm (Mountain Time)
 635 Buyer's Signature
 636

637 Name Printed: Jennifer K. Wells
 638

639 Address: _____ State _____ Zip Code _____
 640

641  Date: _____, at _____ ☐ am ☐ pm (Mountain Time)
 642 Buyer's Signature
 643

644 Name Printed: _____
 645

646 Address (if different): _____ State _____ Zip Code _____

647 **SELLER'S COMMITMENT:**

648 I/We agree to sell to Buyer the above-described Property on the terms and conditions herein above stated. I/We hereby
649 acknowledge receipt of a copy of this Agreement bearing my/our signature(s) and that of the Buyer(s) named above.

650 Date: _____, at _____ ☐ am ☐ pm (Mountain Time)

652 Seller's Signature

653
654 Name Printed: Charles T. Coston

655
656 Address: _____ State _____ Zip Code _____

657 Date: _____, at _____ ☐ am ☐ pm (Mountain Time)

659 Seller's Signature

660
661 Name Printed: _____

662
663 Address (if different): _____ State _____ Zip Code _____

664
xxx led per the attached Counter Offer:

666

TPR
03/03/26
5:44 PM MST

 / _____
667
668 Seller's Initials Date

/ _____
Seller's Initials Date

669
670 ☐ Rejection of this offer by Seller (No counter offer is being made):

671 / _____
672
673 Seller's Initials Date

/ _____
Seller's Initials Date

NOTE: Unless otherwise expressly stated the term "days" means calendar days and not business days. Business days are defined as all days except Sundays and Montana or federal holidays.